

**CLIC Case 0008****Country/Court:** Chile, Supreme Court**Decision number/date:** Case No. 201.442-2023, 2025-02-12**Crime / Issue:** Crimes Against Humanity**Abstract prepared by:** Philipp Gartner

The convicted individual was sentenced in Chile on the grounds of the conviction that he committed aggravated kidnapping (§141 paragraph 3 Penal Code) and crimes against humanity. It was alleged that in August 1974, as part of an operational political repression group within the National Intelligence Directorate (DINA), he participated in the abduction and forced disappearance of two political opponents who were taken to clandestine detention facilities including Villa Grimaldi, and that the accused acted within a framework of a systematic policy of political persecution. Consequently, an Extraordinary Visiting Judge found that these allegations were true and sentenced him to fifteen years of imprisonment, a decision that was subsequently affirmed in its criminal aspects by the Court of Appeals of Santiago.

The convicted individual subsequently lodged an appeal on points of law, raising three arguments. First, he claimed that the lower courts retroactively applied Law No. 20,357, which defines crimes against humanity and was only enacted in 2009, to events that occurred in 1974. Second, he claimed that his criminal liability was extinguished by the statute of limitations because the events did not take place within a declared armed conflict. Lastly, he raised concerns that the lower courts failed to apply the 1978 Amnesty Law (Decree Law 2.191), which erases the existence of the crime and its legal consequences.

Regarding the first point of appeal, the Supreme Court ("the Court") examined Article 546 paragraph 3 of the Code of Criminal Procedure. It held that the defense's arguments contained legal contradictions that were incompatible with each other, as a request for total acquittal initially denies any involvement, whereas a request to apply the statute of limitations or amnesty presupposes that criminal responsibility has already been established in trial. Consequently, it determined that these inner contradictions were sufficient to reject the appeal.

Regarding the second point of appeal, the Court examined the typical elements of crimes against humanity under both domestic and international law. It held that the offenses occurred within a verified context of serious, massive, and systematic human rights violations perpetrated by state agents against civilians suspected of political opposition. Therefore, there was no violation of the principle of legality, as it was fully correct to classify the actions as crimes against humanity due to the victims being instruments of a general state policy of persecution and extermination.

Lastly, the Court referred the 1968 United Nations Convention on the Non-Applicability of Statutory Limitations. It held that crimes against humanity can be committed in both times of war and peace, independent of a declared armed conflict, and constitute an outrage against human dignity. It concluded that these offenses are characterized by absolute imprescriptibility and the total impossibility of granting amnesty, meaning that no positive domestic law can conceal or weaken them, and dismissed the appeal.